THE INDIAN INVESTOR'S EDITION

US Stocks & Global Investing

THE PLAYBOOK 2026-27

LRS, TCS, Schedule FA and the 24-month rule - everything between opening the app and filing the return

USD 250,000	Rs 10 lakh	25%
LRS limit per financial year	the TCS threshold, per person	US dividend tax withheld

Verified against RBI master directions, the Income-tax Act 2025, the Income-tax Department's own schedules and the IRS - current as at 1 November 2026

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How to use this playbook

This is a working document, not a magazine article. Every rule in it is the rule as it stands on 1 November 2026, cited to the authority that owns it: the Reserve Bank of India for remittances, the Income-tax Department and the Income-tax Act 2025 for tax, the IFSCA for the GIFT City route, and the IRS for the American side.

Read Part 1 and Part 2 in one sitting. They are short and they decide everything else. Then read Part 8 before you remit a single rupee, not after. Most people who lose money on this do not lose it in the market. They lose it to a tax bill they did not see coming, or to a 20% deduction they did not plan for, or to a foreign exchange markup that quietly eats a year of returns.

The book is organised so you can act on it:

- Parts 1 to 3 tell you what changed in 2026 and which of the three routes fits you.
- Parts 4 to 6 are the operational spine: the remittance rulebook, the TCS arithmetic, and how to choose and open an account.
- Parts 7 to 10 are the money: what to buy, how the Indian tax works line by line, the three American traps, and how much to allocate.
- Parts 11 to 13 are the proof and the prevention: three complete worked cases, fifteen mistakes, and a twelve-month calendar.
- The appendices are printable. The worksheets are designed to be filled in and handed to your chartered accountant.

> One warning before you start. Nothing here is investment advice or a substitute for a chartered accountant who handles foreign assets. Cross-border tax has real penalties attached to getting it wrong, and the penalties are described in Part 8 so you can see the size of them. Use this book to understand the machine. Use a professional for your specific numbers.

Part 1. Why 2026 is the year this became a normal thing to do

For twenty years, buying an American share from an Indian savings account was possible, legal, and slightly eccentric. You filled a Form A2 at a bank branch, argued with a relationship manager about purpose codes, and then dealt with a foreign broker whose website assumed you lived in Ohio. Almost nobody did it.

That changed in the last six months, and it changed for a structural reason rather than a fashionable one. Three separate things moved at once.

The plumbing was licensed

In August 2025 the International Financial Services Centres Authority, the regulator for GIFT City, published its regulatory framework for global access. It created a licensed category called a Global Access Provider: an entity inside GIFT City that holds a direct relationship with a regulated foreign broker and can route Indian residents' orders to foreign exchanges.

The circular is specific about who may be served and what may be sold. Clients resident in India are permitted, but only to the extent the Foreign Exchange Management Act allows, and the provider must ensure that a resident individual's access is restricted to products permitted under the Liberalised Remittance Scheme. Client funds must be routed through a bank account in the IFSC. Global Access Providers must hold a minimum net worth of USD 500,000, and crypto assets and instruments with crypto underlying are explicitly out of scope.

In June 2026 the licences landed. Zerodha, Groww, Angel One and Upstox received clearance from IFSCA to operate out of GIFT City. Groww, Upstox and Angel One were granted Global Access Provider licences; Zerodha was cleared as a broker-dealer. INDmoney had been running as a principal Global Access Provider since August 2025 and reported passing a million investors.

Then in October 2026 Groww switched the feature on for its retail base, with more than 10,000 US stocks and exchange-traded funds and fractional ownership. Zerodha began beta testing and said a full launch was weeks away. Angel One, with 6.7 million active retail clients, was reported to be preparing the same.

The numbers made the case for them

Groww alone accounts for more than 29% of India's 46 million active broking clients. The pitch wrote itself once you put two index charts side by side. Through 2026 the Nifty 50 fell a little over 12%, while the S&P; 500 rose about 12% and the Nasdaq-100 gained around 18%. Foreign investors pulled a record $32.5 billion out of Indian direct equities since January, according to NSDL data.

The rupee did the rest. The RBI reference rate was 95.25 to the dollar on 30 October 2026, against an all-time high of 96.84 on 20 May 2026. A rupee that has moved about 7% against the dollar in a single year is a powerful advertisement for holding something denominated in dollars, and everyone can feel it at the petrol pump and on an Amazon order.

The money followed, measurably

This is not a vibe. The Reserve Bank publishes monthly Liberalised Remittance Scheme data, and the equity and debt line has been climbing steeply:

Period	Outward remittance for equity and debt	What it tells you
FY 2025-26, full year	USD 2,652.01 million (Rs 25,175.07 crore)	The base the current year is being compared against
April 2026	USD 238.63 million	Start of the financial year
May 2026	USD 363.64 million	Climbing
June 2026	USD 456.69 million	Peak month of the first quarter
July 2026	USD 344.57 million, up 121% year on year	More than double July 2025's USD 156.19 million
April to July 2026 combined	USD 1,403.53 million	About 53% of the entire previous financial year in four months

Two more datapoints put the scale in perspective. In August 2026 resident Indians sent over USD 321 million abroad for equity and debt, up 111% from a year earlier, and investment rose to 11.7% of total outward remittances from 5.8%. And the head of stocks at INDmoney estimated that Indian participation in US markets was around 2 to 2.5 million people, against roughly 45 million active domestic traders. That gap is the entire commercial reason the big brokers built this.

What did not change, and this is the part that matters

None of the above altered a single tax rule. The Liberalised Remittance Scheme still caps you at USD 250,000 per financial year. Tax collected at source still bites at 20% above Rs 10 lakh on an investment remittance. American dividends are still taxed at 25% at source. Foreign shares still need 24 months to become long-term. Schedule FA is still mandatory, still on a calendar-year basis, and still carries a Rs 10 lakh penalty per year for non-disclosure under the Black Money Act.

That asymmetry is the whole point of this book. The door got easier to walk through. The room behind it is unchanged, and it has paperwork in it.

> *The ease of access improved by an order of magnitude. The tax treatment did not move at all.*

The five questions this book answers

1. Which route should I use, and what does each one actually cost me over five years?
2. How much can I send, what happens at the Rs 10 lakh line, and how do I get that 20% back?
3. How will I be taxed on gains and dividends, and what exactly goes in which schedule of my return?
4. What are the American rules that can hurt an Indian investor, and how big is that exposure really?
5. How much of my portfolio should be abroad, and how do I buy it without bleeding fees?

Part 2. Three routes, one decision

There are exactly three legal ways for a resident Indian to own a piece of an American company. They differ in where your account sits, who regulates it, whether you touch the Liberalised Remittance Scheme at all, and what lands in your income tax return. Almost every confused article you have read conflates them.

Route A: an overseas brokerage account, funded under LRS

You open an account directly with a US broker, or with an Indian platform that onboards you to one. You remit rupees under the Liberalised Remittance Scheme, the bank converts them, and the dollars land in your foreign brokerage account. You fill Form A2 at the bank, or the platform does it for you. You file a W-8BEN so the broker treats you as a non-US person.

Your shares sit with a US custodian, and the account is covered by the Securities Investor Protection Corporation up to USD 500,000, including up to USD 250,000 of cash, if the broker itself fails. That protection does nothing about the share price falling. The account is in your name, you are the beneficial owner, and the RBI's remittance rules apply to every rupee that goes out.

What you get: the widest product menu, direct ownership, and usually the tightest spreads. What you pay for: you are the compliance officer. You track your remittances against the USD 250,000 cap, you watch the 180-day rule on unspent money, and you assemble your own Schedule FA data.

Route B: a GIFT City Global Access Provider

You open an account with an Indian platform's GIFT City entity. Your money moves under the same Liberalised Remittance Scheme, through a bank account inside the IFSC, and the provider routes your order to its foreign broker partner. Your holdings are recorded in books maintained in GIFT City, audited and reported to IFSCA, while the underlying shares are held in the US depository system with you as beneficial owner.

The legal difference that matters is accountability. A principal Global Access Provider is licensed by IFSCA, holds the foreign custody relationship directly, and answers to an Indian regulator for your experience. An introducing broker does not: it plugs into someone else's Global Access Provider and is essentially a distributor. Both are legal. Only one of them can be hauled before an Indian regulator over a settlement problem.

The tax position is identical to Route A, because the remittance is still under LRS and the asset is still foreign. You still file Schedule FA. You still claim foreign tax credit on dividends. The GIFT City wrapper changes who you complain to, not what you owe.

Route C: an Indian fund that invests abroad

You buy units of an Indian mutual fund or exchange-traded fund that invests in foreign securities, in rupees, from your existing account. No remittance, no Form A2, no LRS cap, no TCS, and no Schedule FA, because the asset you own is an Indian fund unit. The fund handles the foreign paperwork.

You give up control. You cannot pick Nvidia over the index, you cannot sell a single holding, and you pay the fund's expense ratio on top of whatever it costs to run the foreign exposure. You also cannot choose your entry timing in the same way, and some schemes stop accepting fresh money when the fund house's overseas limits bind. Check with the fund house whether the scheme is currently open to new

investments before you build a plan around it.

This is the route for the investor who wants the exposure and genuinely does not want the compliance work. It is not a consolation prize. For a portfolio under about Rs 5 lakh of foreign exposure, the paperwork saved is often worth more than the fee paid.

The comparison that decides it

	Route A: overseas broker	Route B: GIFT City provider	Route C: Indian fund
Account sits with	US broker, foreign custodian	IFSC entity in GIFT City, custody routed abroad	Indian AMC, units in your Indian folio
Regulated by	SEC and FINRA (US), RBI for the remittance	IFSCA, plus RBI for the remittance	SEBI
LRS remittance needed	Yes	Yes	No
TCS exposure	Yes, 20% above Rs 10 lakh	Yes, 20% above Rs 10 lakh	None
Schedule FA required	Yes	Yes	No
Foreign tax credit claim	Yes, via Form 67	Yes, via Form 67	Not applicable, tax handled inside the fund
Can you pick individual stocks	Yes	Yes	No
Typical all-in cost	Lowest per trade, FX markup varies	Low per trade, FX markup varies	Expense ratio only, no FX markup
Who does the compliance	You	You, with platform help	The fund

Three decision rules

1. If your total foreign investment is under roughly Rs 5 lakh and you have no interest in stock picking, use Route C. The compliance burden of Routes A and B is real and it scales with the number of years you hold, not the size of the holding.
2. If you want individual companies or ETFs, or you plan to invest more than about Rs 5 lakh in total, use Route B through a principal Global Access Provider. You get an Indian regulator in the chain and the platform usually pre-populates the data you need for Schedule FA.
3. Use Route A only if you specifically need a product the Indian platforms do not carry, or you already have a foreign account. For a first-time investor it adds compliance work for no benefit.

> Whichever route you choose, the tax chapter in Part 8 applies the moment you own a foreign security. Read it before your first trade, because two of the decisions in it (which financial year to remit in, and how long to hold) have to be made at the start, not at filing time.

Part 3. The LRS rulebook, in the order you will hit it

The Liberalised Remittance Scheme is not a tax. It is a foreign exchange facility, and it is the only door out. Everything about investing abroad starts with understanding its six real constraints.

The cap: USD 250,000 per financial year, April to March

The Reserve Bank's position is plain: all resident individuals, including minors, may freely remit up to USD 2,50,000 per financial year for any permissible current or capital account transaction or a combination of both. That limit has been in place since 26 May 2015, when it was raised from USD 125,000. At the RBI reference rate of 95.25 on 30 October 2026, USD 250,000 is roughly Rs 2.38 crore.

The financial year matters, not the calendar year. Your cap resets on 1 April, which is also why the timing decisions in Part 4 work: two financial years means two caps and two TCS thresholds.

Who can use it, and who cannot

Resident individuals only. The scheme is not available to corporates, partnership firms, Hindu undivided families or trusts. A minor can remit, but the Form A2 declaration must be countersigned by the minor's natural guardian. Pan is mandatory for every LRS transaction through an authorised person, without exception.

The cap is cumulative across every purpose, not just investing

This is where people get caught. The same USD 250,000 covers your child's tuition, a family holiday, a gift to a relative abroad, medical treatment, emigration and your share purchases. It is not USD 250,000 per purpose. Once you have remitted the full amount in a financial year you cannot make a further remittance under the scheme, even if the investments have since been sold and the money brought back to India.

There is no restriction on how many times you remit. You can send money every week if you want to pay the fixed costs every week. The cumulative ceiling is the only frequency constraint.

What the money may be used for

Permitted use under LRS	Notes for an investor
Private visits to any country except Nepal and Bhutan	Counts against the same USD 250,000
Gift or donation	Counts against the same cap
Going abroad for employment, or emigration	Counts against the same cap
Maintenance of close relatives abroad	Counts against the same cap
Business travel, conferences, specialised training	Counts against the same cap
Medical treatment abroad	Counts against the same cap
Studies abroad	Counts against the same cap
Investment in foreign securities, including shares and ETFs	The purpose that concerns this book. Use purpose code for investment, not travel
Any other current account transaction not prohibited or restricted	Residual category, subject to bank due diligence

The 180-day rule on money that is not invested

This one is widely misunderstood, including by platform marketing pages. The RBI's master direction says an investor who has remitted funds under the scheme can retain and reinvest the income earned on those investments. But the received, realised, unspent or unused foreign exchange, unless reinvested, must be repatriated and surrendered to an authorised person within 180 days from the date of receipt, realisation, purchase, acquisition or return to India.

Read that again with your own habits in mind. If you remit Rs 3 lakh in January, buy nothing, and let the dollars sit in your brokerage wallet until next winter, you have a problem that has nothing to do with the market. The window is 180 days, not one year, and it is not a tax deadline you can settle with interest later. It is a foreign exchange compliance requirement.

Practically: remit when you are ready to buy, buy within days, and if a purchase falls through, repatriate or reinvest the balance well inside the window. Keep the remittance advice and the trade confirmation for every single transfer. If a bank ever asks, the two documents together prove the money was used for the declared purpose.

The paperwork, step by step

1. Pan on file with the bank and the platform. Everything is reported against it, including TCS in Form 26AS.
2. Designate one authorised dealer branch for your capital account remittances, and understand that the RBI expects capital account remitters to have held the bank account for a minimum period of one year before the remittance, with enhanced due diligence and source-of-funds checks for newer customers. If you opened your salary account last month, expect questions and bring your last year's bank statement or your income tax return.
3. Fill Form A2 for the purchase of foreign exchange, declaring the purpose and confirming the funds are yours and will not be used for any prohibited or regulated purpose.
4. Confirm the purpose code the bank will use. For investing it must be the investment code. A travel code on an investment remittance creates a mismatch between your bank record and your Schedule FA.
5. Keep the remittance advice, the rupee-to-dollar conversion rate used, the TCS certificate if any, and the trade confirmations, filed by financial year.

> One clean habit removes most of the risk in this part. Create one folder per financial year, name it LRS-2026-27, and drop every remittance advice, contract note and dividend statement into it the day it arrives. In July, when you sit with your chartered accountant, the folder is the return.

Part 4. TCS: the 20% that is not a tax

Tax collected at source is the single most misunderstood cost of investing abroad, and the misunderstanding runs in both directions. Some people think it is a fee they have lost. Others think it does not apply to them. Both are usually wrong.

What it is

TCS on foreign remittances sits in section 206C(1G) of the Income-tax Act 1961, and the provisions have been carried into the Income-tax Act 2025, which came into force on 1 April 2026. The obligation to collect falls on the bank, an authorised dealer, at the time it debits your account or receives your payment, whichever is earlier. It is collected against your PAN and it appears in Part VI of your Form 26AS.

It is advance tax. Not a fee, not a charge, not a penalty. It is your own money parked with the government until you file your return, at which point it is set against your total liability exactly like TDS or advance tax, and any excess comes back as a refund.

The rates that actually apply in FY 2026-27

Nature of remittance	TCS rate	Threshold
Investment, gifting, maintenance of relatives, and other non-education, non-medical purposes	20%	Nil up to Rs 10 lakh of aggregate LRS remittances in the financial year; 20% on the excess
Education or medical treatment	5%	Nil up to Rs 10 lakh; 5% above
Education financed by a loan from a financial institution notified for section 80E	Nil	No TCS at any amount
Overseas tour programme package	5% up to Rs 10 lakh, 20% above	Applies to the tour package itself
Any of the above where PAN or Aadhaar is not furnished	Higher rate	Furnish your PAN and this never applies to you

The threshold is the detail people miss. The Rs 10 lakh exemption is an aggregate across all LRS remittances in the financial year, applied on a first-come-first-served basis. A Rs 4 lakh family holiday in June, a Rs 3 lakh gift to a relative in September, and then a Rs 6 lakh investment remittance in December means Rs 7 lakh of your threshold was already consumed before the investment. Only Rs 3 lakh of the investment remittance is exempt, and 20% applies to the remaining Rs 3 lakh.

Four worked examples

Scenario in one financial year	TCS collected	Why
You invest Rs 8 lakh and make no other remittance	Nil	Below the Rs 10 lakh aggregate threshold
You invest Rs 15 lakh and make no other remittance	Rs 1,00,000	20% on the Rs 5 lakh above the threshold

Scenario in one financial year	TCS collected	Why
You spend Rs 9 lakh on a holiday, then invest Rs 6 lakh	Rs 1,00,000	The holiday used Rs 9 lakh of the threshold; only Rs 1 lakh of the investment is exempt, so 20% applies to Rs 5 lakh
You invest Rs 9 lakh in March 2027 and Rs 9 lakh in April 2027	Nil in both years	Two financial years, two separate Rs 10 lakh thresholds

The fourth row is the whole planning insight of this chapter. A Rs 18 lakh remittance made in one financial year costs you Rs 1,60,000 of locked cash. Split across the March and April boundary, it costs nothing. The only cost of splitting is one extra remittance and a few days of market timing, which for a long-term purchase is irrelevant.

How to get it back, and how long it takes

The money returns through your income tax return. Three routes, in order of how quickly they help:

1. Form 12BAA. This is the declaration you give your employer so that TCS already collected, and TCS you expect, is set against the tax deducted from your salary during the year. The CBDT introduced the form in October 2024. It is the difference between recovering the money in the same financial year and recovering it fifteen months later.
2. The return itself. TCS appears in Part VI of Form 26AS and is picked up automatically in the taxes-paid section of your ITR. Verify the entry against your bank's certificate before filing. The most common reason a claimed credit gets flagged is a mismatch caused by a wrong PAN on the bank's A2 form.
3. The refund. If your TCS exceeds your actual liability, which is common when the remittance had no connection to taxable income, the excess is refunded when the return is processed.

Budget for the timing, not just the amount. A Rs 1.5 lakh TCS deduction in June 2026 is money unavailable to you until your return for FY 2026-27 is processed, which in practice means the second half of 2027. On a Rs 15 lakh investment that is roughly 10% of the capital frozen for over a year. If that cash flow is a problem, the answer is not to skip the investment. It is to split the remittance across two financial years, or to file Form 12BAA.

The family arithmetic that is legal and underused

The cap and the TCS threshold are per individual, not per family. Two earning adults in a household have two USD 250,000 caps and two separate Rs 10 lakh TCS thresholds. If both invest, in their own names, from their own funds, into their own accounts, the family's tax-free remittance headroom is Rs 20 lakh a year rather than Rs 10 lakh.

The qualifier is the whole sentence. Own name, own funds, own account. Money moved into a relative's account so they can invest it on your behalf creates a beneficial ownership problem that Schedule FA is explicitly designed to catch, because the schedule requires you to disclose assets where you are the beneficial owner even if someone else is the legal owner. Do not do it.

Part 5. Choosing a platform without overpaying

The platform decision is mostly a cost decision, and the cost that matters is not the brokerage. It is the foreign exchange markup, which is charged on every rupee you send and is invisible in most comparisons because it is quoted as a range rather than a number.

What actually differs between them

- Licence type. A principal Global Access Provider holds the foreign custody relationship and answers to IFSCA for execution and settlement. An introducing broker does not, and passes your data to a provider. A foreign broker sits outside Indian regulation entirely.
- Foreign exchange markup over the RBI reference rate. This is the dominant cost for anyone investing monthly.
- Per-trade fee and its floor and cap. Irrelevant for buy-and-hold, meaningful for anything active.
- Whether fractional shares are available, which decides whether you can invest Rs 5,000 or must invest the price of one share.
- What the platform hands you at year end. A clean statement with cost, peak value, closing value and gross proceeds per holding saves you hours in July and reduces the chance of a Schedule FA error.
- Whether the platform files or at least pre-fills your W-8BEN, and whether it tracks your cumulative LRS remittances against the USD 250,000 cap.

Published costs as at October 2026

Platform	Per-trade brokerage	Foreign exchange cost	Notes
Zerodha	0.10% of trade value, minimum USD 0.01, maximum USD 10	Markup of 0.4% to 1.4% above the RBI reference rate	Broker-dealer licence at GIFT City; beta in October 2026 with full launch expected within weeks
Groww	0.1% or USD 1 per executed order	Not published as a single figure; varies by partner bank	Global Access Provider licence; more than 10,000 US stocks and ETFs; fractional shares; launched October 2026
Upstox	0.25% per trade, capped at USD 25	1% to 3.5% through the partner bank, depending on provider and transaction type	Global Access Provider licence
Direct bank remittance to a foreign broker	Broker's own schedule	1.5% to 2% plus fixed transaction fees	The old route. Usually the most expensive per rupee sent
Platform-negotiated bank rates generally	Varies	0.5% to 1.5%, with fixed transaction fees often waived	The range to benchmark any quote against

Read the third column as the real price list. On a Rs 10 lakh remittance, a 0.5% markup costs Rs 5,000 and a 3.5% markup costs Rs 35,000. That is the entire first year of a decent return, gone, before you have bought anything. Ask for the all-in rate in rupees on a specific amount before you open the account, and compare the actual rupee figure across two or three platforms rather than comparing the

percentages.

The cost of a round trip, worked out

Take an investor who sends Rs 2,40,000 a year, in twelve monthly instalments of Rs 20,000, through a platform charging 0.1% per trade and a 1% foreign exchange markup.

Cost line	Monthly remittance	Quarterly remittance	Annual remittance
Number of remittances a year	12	4	1
Foreign exchange markup at 1%	Rs 2,400	Rs 2,400	Rs 2,400
Brokerage at 0.1%	Rs 2,400	Rs 2,400	Rs 2,400
Fixed bank or platform charges	Twelve times the fixed fee	Four times the fixed fee	Once
Effect on time in market	Smoothest	Reasonable	Single entry point, most timing risk

The percentage costs are the same. The fixed costs are not, and they are the ones that punish small frequent remittances. For most people investing under Rs 5 lakh a year, quarterly is the efficient compromise: four fixed-fee hits, and enough averaging that a single bad entry day does not define the year.

What SIPC does and does not cover

Accounts at US broker partners are covered by the Securities Investor Protection Corporation up to USD 500,000, including up to USD 250,000 in cash, if the broker fails. That is protection against the broker disappearing with your assets. It is not insurance against Nvidia halving. No regulator anywhere insures you against the share price falling, and any platform implying otherwise should lose your business.

Nine questions to ask before you open the account

1. Are you a principal Global Access Provider, an introducing broker, or a foreign broker? Who holds custody, and who is my regulator?
2. What is the all-in rupee cost of sending Rs 1 lakh today, including your markup, the bank's charge and any fixed fee? Give me one number.
3. Is my account opened in my own name with the US broker partner, and am I the beneficial owner?
4. Do you handle the W-8BEN, and what happens when it expires?
5. Do you track my cumulative remittances against the USD 250,000 LRS cap, and will you warn me before I hit it?
6. What exactly appears in my year-end statement: cost, peak value, 31 December value, dividends, withholding and gross sale proceeds, per holding?
7. How do you handle dividends and the 25% US withholding, and will you give me the tax document I need for Form 67?
8. What happens if I want to transfer my holdings to another broker, and what does it cost?
9. How long does a withdrawal take from sale to rupees in my Indian bank account?

> If a platform cannot answer question two with a single rupee figure on a stated amount, that is your answer. Cost opacity in this category is not an accident.

Part 6. Opening the account and funding it without mistakes

The account-opening sequence has one ordering constraint that matters and five that are merely annoying. The constraint: your W-8BEN must be in place before your first dividend, or the US broker withholds at the default 30% instead of the treaty 25%.

The sequence

1. Complete KYC with the Indian platform or GIFT City entity using your PAN and Aadhaar. This happens once, in rupees, inside India.
2. Sign the W-8BEN. This is the US form on which you certify that you are a non-US person and claim the India-United States treaty rate on dividends. It is valid for the calendar year of signature plus three more, and then it must be renewed. Diarise the renewal; nobody sends you a reminder that your dividend withholding just went up.
3. Confirm the account is in your own name, single holder, with you as beneficial owner. A joint US account creates an ownership question in Schedule FA that has no clean answer for an LRS-funded portfolio, because the LRS remitter is a specific individual.
4. Remit with the correct purpose code, or let the platform generate the Form A2. Check the code that appears on the advice.
5. Buy within days. Do not park dollars in the wallet.
6. File the remittance advice, contract note and W-8BEN confirmation into the financial-year folder described in Part 3.

What the first rupee actually goes through

You transfer rupees from your Indian bank account. The bank or the platform's payment partner converts at a rate built on the RBI reference rate plus a markup. The dollars are remitted under LRS, land with the broker's US custodian or in a segregated client account in GIFT City, and are recorded against your account. Your order then goes to the exchange, executes, and settles in the US depository system.

At no point does the money belong to the platform. In the GIFT City structure, client funds must sit in a bank account in the IFSC. In the direct structure, they sit with a US broker covered by SIPC. If someone cannot explain which of those two applies to your money, do not send it.

The four things that go wrong in month one

What goes wrong	What it costs you	The fix
W-8BEN not filed before the first dividend	30% withheld instead of 25%, and a harder foreign tax credit claim	Sign it during onboarding, before you fund
Wrong purpose code on the remittance	A mismatch between the bank record and Schedule FA, which is exactly the pattern an automated matching system flags	Check the code on the advice; ask the platform to correct it in writing if wrong
Dollars parked in the wallet for months	A 180-day foreign exchange compliance exposure, not just an opportunity cost	Remit when ready to buy; reinvest or repatriate within the window

What goes wrong	What it costs you	The fix
Assuming a joint account is convenient	Beneficial ownership ambiguity in Schedule FA	Single holder. If a spouse invests, they open their own account with their own funds

Part 7. What to actually buy

The product question is easier than the compliance question, which is why this part is short and Part 8 is long. But two decisions here change your tax and estate exposure, so they belong before the tax chapter, not after.

Decision one: index or single company

The evidence for broad, low-cost index exposure over stock picking is old and dull and it applies to Indian investors buying American shares exactly as it applies to Americans. You are additionally handicapped: you are reading American research written for American tax situations, at a nine-and-a-half hour time lag, in a market whose news cycle happens while you sleep.

The list of most popular stocks among Groww's early users, as reported in October 2026, was Nvidia, SpaceX, Apple, Alphabet, Amazon, Micron and Meta. Notice what that list is. It is a list of companies that went up, assembled by people who watched them go up. That is not a portfolio. It is a receipt for the last cycle.

A reasonable structure for most readers: a broad US index fund or ETF as the core, and if you must own individual companies, a satellite of no more than 20% of the foreign allocation, in businesses you can explain in one sentence without mentioning the share price.

Decision two: US-listed ETF, or Indian fund that buys abroad

This is the decision with a tax consequence, and it is the one almost nobody explains. A US-listed ETF is a US-situs asset for American estate tax purposes. An Indian fund that invests in the same index is not. The two give you similar market exposure and very different exposure to a rule described in Part 9.

	US-listed ETF via LRS	Indian fund or ETF investing abroad
Market exposure	Same underlying index	Same underlying index, minus tracking differences
Currency exposure	Direct dollar holding	Indirect, through the fund's holdings
LRS and TCS	Applies	Neither applies
Schedule FA	Required every year	Not required, you hold an Indian asset
Foreign tax credit work	You claim it on the fund's dividends via Form 67	Handled inside the scheme
US estate tax exposure	The holding is US-situs stock	None, the asset is Indian
Cost	Brokerage plus foreign exchange markup, then the ETF's expense ratio	The scheme's expense ratio
Control	Full, including the ability to sell part of a position	None beyond buying and selling units

What is not on the menu

LRS is a facility for investing, not for leveraged trading. The permitted menu is cash equity and funds. Margin trading, options and futures on American markets are not part of what a resident individual may do under this route, and the licensed platforms do not offer them. If a service is advertising leveraged US trading to Indian residents, it is either not licensed, or it is not what it says it is.

A starting structure, not a recommendation

The following is a framework to adapt with your own adviser, not advice. It reflects three constraints: compliance work scales with the number of holdings, foreign exchange cost rewards fewer larger remittances, and the 24-month long-term line rewards not churning.

Sleeve	Share of the foreign allocation	Why
Broad US market index ETF or fund	60% to 80%	One holding, one Schedule FA line, one decision a year
Developed markets ex-US, or a global index	0% to 20%	Reduces single-country concentration; check what the product actually holds
Individual companies you can explain	0% to 20%	Capped deliberately. This is the sleeve that produces the losses people do not discuss
Cash	Under 5%, and inside the 180-day rule	Enough to buy on a bad day, not enough to be a compliance problem

How to read an ETF fact sheet in ten minutes

Every US-listed ETF publishes the same facts. Six of them decide whether you should own it, and the other thirty are decoration.

What to look at	What good looks like	Why it matters to you specifically
Index tracked, and the replication method	A broad, rules-based index, physically replicated where the market is liquid	Synthetic or sampled replication can drift from the index in ways you cannot see in the price
Net expense ratio	Under 0.10% for a broad US index fund is achievable; under 0.25% is acceptable	You are already paying a foreign exchange markup. Do not stack a second silent fee
Assets under management	Large and growing, not shrinking	Small funds get merged or closed, which forces a taxable event on you at a date you did not choose
Median daily traded value	Comfortably larger than your order size	A thin ETF can move against you on entry, and the spread is a cost that never appears on a statement
Number of holdings and top-ten concentration	Hundreds of holdings, top ten under about 40%	An index whose top ten are half the fund is a concentrated bet wearing an index label
Distribution policy	Accumulating is unavailable in US-listed products; assume quarterly dividends	Every distribution triggers 25% US withholding and a Form 67 line. A high-yield product creates a lot of paperwork

Two things that are not on the fact sheet and matter more than anything on it. First, the fund's domicile: a US-listed fund is a US-situs asset for estate tax purposes, as Part 9 explains. Second, what the fund does with securities lending income, which is disclosed in the annual report and almost never in the marketing material.

A workable rule: if you cannot state the index, the expense ratio and the assets under management from memory after reading the page once, you do not know what you bought. Pick something you can describe in one sentence.

Why the boring choice usually wins

Three structural facts about a retail foreign investor make the simple portfolio the correct one, and none of them are about intelligence.

1. Your compliance cost is per holding, not per rupee. Every additional company is another Table A3 row, another lot record, another corporate action to track, and another place for the 24-month clock to be miscalculated.
2. Your information advantage is negative. You are trading a market whose filings, analyst calls and news arrive while you sleep, against participants who read them in real time.
3. Your tax code punishes activity. There is no Rs 1.25 lakh exemption to absorb a small realised gain, and a sale inside 24 months is taxed at your slab. Every trade is a tax decision.

Part 8. The Indian tax bill, line by line

This is the chapter to read twice. Everything in it is current for tax year 2026-27, the first year under the Income-tax Act 2025, which replaced the 1961 Act with effect from 1 April 2026. The section numbers have moved; the substance has not.

8.1 Capital gains: the 24-month line

Foreign shares are not securities listed on a recognised stock exchange in India, so they do not get the 12-month long-term treatment that Indian listed equity gets. The default rule applies: a capital asset held for more than 24 months immediately before transfer is long-term; held for 24 months or less, it is short-term. The Income-tax Act 2025 states this in its definitions, and it is confirmed by the Income-tax Department's own guidance on holding periods.

Holding period	Treatment	Rate
24 months or less	Short-term capital gain	Added to total income and taxed at your slab rate, which under the default regime runs from 5% to 30%, plus surcharge where applicable and 4% health and education cess
More than 24 months	Long-term capital gain	12.5%, with no indexation benefit, plus surcharge where applicable and 4% cess
The Rs 1.25 lakh annual LTCG exemption	Not available	That exemption applies to long-term gains on equity shares and equity-oriented funds on which securities transaction tax has been paid. Foreign shares have no STT, so the exemption does not reach them

The practical consequence is a planning rule, not a trading rule: if a position is close to the 24-month line and you do not need the money, waiting a few weeks can move the entire gain from your slab rate to 12.5%. For someone in the 30% bracket that is a difference of more than half the tax on that gain. It is the single largest tax lever available to a foreign investor in India, and it is entirely legal.

8.2 The rupee is part of your gain

You must compute the gain in rupees, converting the cost at the rate on the purchase date and the sale proceeds at the rate on the sale date. The Income-tax Department specifies the telegraphic transfer buying rate of the State Bank of India for conversions in the foreign asset schedules, and the same principle applies to computing the gain.

The effect is larger than most people expect, and it cuts both ways.

	Amount
Buy 10 shares at USD 200 each, when USD/INR is 90	Cost USD 2,000, recorded as Rs 1,80,000
Sell 10 shares at USD 200 each, when USD/INR is 95	Proceeds USD 2,000, recorded as Rs 1,90,000
Share price change	Zero
Taxable capital gain in India	Rs 10,000, because the rupee fell
Tax if held over 24 months	Rs 1,250 at 12.5%, plus cess

	Amount
Tax if held under 24 months, at a 30% slab	Rs 3,000, plus cess

This is why a weaker rupee is not a free lunch on entry. It makes your purchase more expensive in rupees today, and it makes your eventual rupee gain larger even if the share price never moves. You are taxed on the combined result. The right way to think about it: you are not buying a stock, you are buying dollars that happen to be invested.

8.3 Cost basis, lots and corporate actions

Use the first-in-first-out convention consistently and keep a lot-level record: date, quantity, price in dollars, exchange rate on that date, rupee cost. When a stock splits, the total cost stays the same and the quantity changes. When you receive a dividend reinvested through a dividend reinvestment plan, that is a fresh lot with its own date and rate.

If you sell part of a position, the FIFO convention decides which lot you sold and therefore whether the gain is long-term or short-term. Without lot-level records you cannot prove the holding period, and the burden of proof in an assessment is yours.

8.4 Dividends: 25% goes at source, the rest is your slab

American companies withhold tax on dividends paid to Indian residents. Under Article 10 of the India-United States treaty, the rate for a shareholder who is not a company holding at least 10% of the voting stock is 25% of the gross dividend. That rate is confirmed in the Income-tax Department's own withholding tax table, as amended by the Finance Act 2025. Without a valid W-8BEN the broker applies the domestic 30% default instead.

In India the dividend is then taxed at your slab rate, because it is income from other sources. You claim credit for the 25% already paid, and the arithmetic depends on your bracket:

Your slab	Indian tax on a USD 1,000 dividend (about Rs 95,000)	US tax withheld at 25% (Rs 23,750)	Result
30% bracket, 31.2% with cess	Rs 29,640	Rs 23,750 credit	Pay about Rs 5,890 more in India
20% bracket, 20.8% with cess	Rs 19,760	Credit limited to Rs 19,760	The extra Rs 3,990 is not refunded by India; the credit cannot exceed the Indian tax on that income
Nil tax after rebate under section 87A	Nil	No Indian liability to absorb the credit	You generally cannot recover the US tax through the Indian return

The third row is the one to notice, and it is the reason dividends are not automatically good for a low-income investor. If your total income is below the rebate threshold, the 25% taken by the United States is, in practice, a final cost. High-dividend strategies look very different after that line.

8.5 Claiming foreign tax credit without losing it

Foreign tax credit is not automatic. You claim it through three things that must agree with each other: Schedule FSI, which reports the foreign-source income; Schedule TR, which claims the relief; and Form 67, the statement of foreign income and foreign tax filed on the e-filing portal.

Rule 128 governs the claim. Sub-rule (8) requires the Form 67 statement plus a certificate or statement specifying the nature of the income and the tax deducted, from the foreign tax authority, from the person who deducted it, or signed by you with proof of deduction attached. Sub-rule (9), as amended with effect from 1 April 2022, requires Form 67 to be furnished on or before the end of the relevant assessment year, provided the return itself was filed within the time allowed.

The deadline is therefore more forgiving than the old rule, which required Form 67 before the return due date. The Income Tax Appellate Tribunal has gone further and held in several decisions that filing Form 67 is a directory rather than a mandatory requirement, because Rule 128 prescribes no consequence for delay and denying relief on a procedural lapse would defeat the purpose of the treaty.

Do not rely on that case law as a strategy. Rely on it as reassurance if you have already missed the date. File Form 67 in the same sitting as your return, every year, and attach the broker's annual tax statement showing gross dividends and the amount withheld.

8.6 Schedule FA: the schedule that carries the penalty

Every resident assessee who holds, owns or has a beneficial interest in a foreign asset, or has income from any source outside India, must disclose it in Schedule FA. This applies to a resident and ordinarily resident individual. It does not apply to a non-resident or a not-ordinarily-resident. It is available in ITR-2, ITR-3, ITR-5, ITR-6 and ITR-7. It is not in ITR-1 or ITR-4, which is why anyone with a foreign holding must not file those forms.

The reporting period is the calendar year ending 31 December, not the financial year ending 31 March. For the return you file in 2027 for tax year 2026-27, the schedule covers 1 January 2026 to 31 December 2026. This single fact causes more errors than any other in the schedule.

Two tables do almost all the work for a stock investor:

Table	What it covers	What you must report
Table A2	Foreign custodian accounts, which is your brokerage account	Country and code, custodian name, account number, date opened, ownership type, peak balance during the calendar year, closing balance on 31 December, and gross amounts credited split into interest, dividend, proceeds from sale or redemption, and other income
Table A3	Foreign equity and debt interest, which is each individual holding	Country, entity name and address, ownership type, date of acquisition, initial value of investment, peak value during the year, closing value on 31 December, gross interest or dividend, total gross amount credited, and gross proceeds from sale or redemption
Table G	Any other foreign-source income not captured above	For example a payment from a foreign client, or interest from an account you closed during the year

Every figure is converted to rupees at the SBI telegraphic transfer buying rate on the relevant date: the date of the peak balance, the date of investment, or the closing date of the calendar year. Ownership type must be right. Legal owner means you hold and own it; beneficial owner means you paid for it but it is in someone else's name; beneficiary means someone else paid and you benefit. If you are both legal

and beneficial owner, the schedule instructs you to state legal owner.

One more instruction that is easy to miss: a foreign asset reported in Schedule FA must also be reported in Schedule AL where Schedule AL applies. The two disclosures are not alternatives.

8.7 What non-disclosure costs

Failure to disclose foreign assets and foreign income can attract the Black Money (Undisclosed Foreign Income and Assets) and Imposition of Tax Act 2015. The headline consequence is a penalty of Rs 10 lakh per year of non-disclosure, with harsher provisions for deliberate concealment.

Budget 2024 softened this at the margin. From 1 October 2024, movable foreign assets up to Rs 20 lakh were brought outside the scope of that penalty. Immovable property was excluded from the relief, and misreporting under the Income-tax Act itself can still attract penalty separately. For a portfolio of foreign shares, the Rs 20 lakh relief is meaningful and it is not a licence to skip the schedule, because the underlying income still has to be offered to tax.

The department is not waiting for you to volunteer. The CBDT runs a campaign it calls NUDGE, for non-intrusive usage of data to guide and enable, using automatic exchange of information under the Common Reporting Standard and FATCA. In the first round, launched in November 2024, it identified 24,678 taxpayers who had disclosed foreign assets worth Rs 29,208 crore and foreign income of Rs 1,089.88 crore for assessment year 2024-25, and it has since run further rounds sending SMS and email to taxpayers whose data suggests unreported foreign assets. India receives account holder name, address, tax identification number, account number, balance and income details from foreign jurisdictions every year.

If you already hold foreign assets and have not been reporting them, the remedy is a revised or updated return, filed with proper disclosure, before a notice arrives. Talk to a chartered accountant about which route applies to your year. The cost of doing that is a fee. The cost of not doing it is described in the paragraph above.

8.8 Advance tax, because nobody deducts it for you

Capital gains and dividends from foreign shares have no TDS in India. You are responsible for advance tax in four instalments: 15% by 15 June, 45% by 15 September, 75% by 15 December and 100% by 15 March. Shortfalls attract interest under sections 234B and 234C.

The exemption that saves many salaried investors: an individual with no business income whose tax already deducted at source exceeds 90% of the assessed tax is not required to pay advance tax. A large one-off capital gain in December breaks that comfort immediately, because the gain has no TDS against it. If you sell a big position, run the numbers in the same month and pay the instalment.

8.9 One investor, one full year, all the numbers

Here is a complete computation for a salaried investor in the 30% bracket, using round figures, so you can see how the pieces interact.

Line	Amount
Salary income after standard deduction	Rs 24,00,000
Short-term gain on a US stock held 14 months	Rs 80,000, taxed at slab

Line	Amount
Long-term gain on a US ETF held 30 months	Rs 2,20,000, taxed at 12.5%
US dividends received, gross	Rs 1,00,000, with Rs 25,000 withheld in the US
Tax on short-term gain at the 30% slab	Rs 24,000
Tax on long-term gain at 12.5%	Rs 27,500
Tax on dividends at the slab, before credit	Rs 30,000
Foreign tax credit allowed	Rs 25,000, limited to the Indian tax on that dividend
Net dividend tax payable in India	Rs 5,000
Surcharge	Nil at this income level
Health and education cess at 4% on the income tax	On the total, added last
What goes in the return	ITR-2, Schedule FA with Table A2 for the brokerage account and Table A3 for each holding, Schedule FSI, Schedule TR, and Form 67

Note what the table does not contain: a Rs 1.25 lakh exemption on the long-term gain. It does not apply. The whole Rs 2,20,000 is taxed at 12.5%. That is the most expensive misunderstanding in this book, and it is repeated in a great many online articles written by people who copied the Indian-equity rule without checking.

8.10 The eight documents your chartered accountant will ask for

1. Broker's annual statement showing, per holding, quantity, cost, peak value, 31 December value and gross sale proceeds, in both dollars and rupees.
2. Contract notes for every purchase and sale in the year, with the rupee conversion rate used.
3. Dividend statement showing gross dividend and tax withheld, ideally the US tax form issued by the broker.
4. Bank remittance advices for every LRS transfer, with the purpose code and the exchange rate.
5. TCS certificate and the Form 26AS entry showing the amount collected.
6. The W-8BEN confirmation, and the date it expires.
7. Your filed Form 67 acknowledgement.
8. A one-page summary you write yourself: opening value, closing value, money in, money out, gains and dividends. If you cannot write that page, you do not yet understand your own position well enough to file it.

Part 9. The three American rules that catch Indian investors

The Indian side of the tax has a schedule you can learn. The American side has three rules, and only one of them is widely discussed on Indian personal finance sites.

9.1 Estate tax: the one nobody mentions at the point of sale

The United States imposes estate tax on the transfer of US-situated property owned by someone who dies domiciled outside the United States. The IRS is explicit about what counts. Stock of corporations organised under US law is US-situated property, regardless of where the certificates are held or whether they are registered in a nominee's name. Your holding of Apple, bought through an Indian app, sitting in a US depository, is US-situated property.

The filing threshold for a nonresident who is not a citizen is USD 60,000 of US-situated assets, plus adjusted taxable gifts. That threshold is not indexed for inflation. The executor must file Form 706-NA within nine months of death, and above the threshold the graduated rates apply, rising to 40%.

At the RBI reference rate of 95.25 on 30 October 2026, USD 60,000 is about Rs 57 lakh. That is the number to remember. A US-listed portfolio above roughly Rs 57 lakh crosses the line where a US estate tax return becomes due on death.

There is no relief from the income tax treaty. The India-United States convention covers taxes on income; it is not an estate tax treaty, and the United States has estate tax treaties with a limited list of countries that does not include India. So the practical position for an Indian investor is:

- Under about Rs 57 lakh of US-situs holdings, the threshold is not crossed and the exposure is, in most cases, theoretical.
- Above it, the exposure is real and the planning is genuinely specialist. The choices are to keep US-situs holdings below the line, to hold the exposure through an Indian fund instead of a US-listed security, or to accept the exposure and take cross-border advice on structuring.
- A holding in an Indian fund that invests in US securities is an Indian asset, so this rule does not reach it. That is the cleanest answer available to a retail investor, and it is why Part 7 asked you to choose between a US-listed ETF and an Indian feeder before this chapter.

> Do not attempt to solve this yourself with a nominee account or a foreign entity. The IRS looks through nominees, and Schedule FA requires you to disclose assets you beneficially own even where someone else is the legal owner. The two systems are designed to catch exactly that arrangement.

9.2 Dividend withholding and the W-8BEN

The United States taxes dividends paid to non-residents at 30% unless a treaty reduces it. The India-United States treaty reduces it to 25% for an individual shareholder. The mechanism is the W-8BEN, which tells the broker you are a non-US person entitled to treaty benefits. It expires, and when it does the rate quietly reverts to 30%.

A 5% difference on a Rs 1 lakh dividend is Rs 5,000 a year. Over a decade of a growing portfolio it is a real number, and it is entirely avoidable. Diarise the expiry the day you sign.

9.3 What the US does not tax

The United States does not tax the capital gains of a non-resident who is not engaged in a trade or business in the United States. Your gain on selling Apple shares is not subject to US capital gains tax. This is why the Indian tax computation in Part 8 does not contain a foreign tax credit line for capital gains, and why the only foreign tax credit you will normally claim is on dividends.

Two caveats worth knowing rather than worrying about. If you spend enough time in the United States in a calendar year you may become a resident for US tax purposes under the substantial presence test, and the analysis changes completely. And if you ever exercise US-situated employee stock options while working there, you need advice, not a book.

Part 10. How much should be abroad

The case for a foreign allocation is not that American stocks go up. It is that India is a small slice of the world's equity market, and holding only India is a concentrated bet on one country's politics, currency and monsoon.

The comparison used in the Financial Express analysis of the RBI data is that India makes up only about 4% of global equity market capitalisation. Whatever the precise figure, the direction is not in dispute. An Indian investor with a 100% domestic portfolio has made a deliberate decision to own none of the other 96%.

Three arguments for the allocation, in order of how much weight they deserve:

1. Diversification of the business cycle. Indian and American markets do not move together, which is the entire mechanical benefit. In 2026 the Nifty 50 fell more than 12% while the S&P; 500 rose about 12% and the Nasdaq-100 about 18%.
2. Currency. A rupee that went from the low 80s to 95 to the dollar over a few years changes what your savings can buy internationally. Holding some assets in dollars is a hedge against that, not a bet on it.
3. Access to sectors India does not have listed. Semiconductors, global software platforms, and the largest artificial intelligence businesses are largely absent from Indian exchanges. This is the reason most people actually start.

The argument that deserves less weight than it gets

Chasing last year's return. The surge in October 2026 was driven by exactly that, and the professionals said so out loud. Kotak Mahindra Asset Management's Nitin Jain told CNBC that there is big interest among Indians in US stocks, especially tech, and added that retail investors like whatever goes up, pointing to the crypto frenzy a few years earlier. Anand Rathi's Tanvi Kanchan made the macro point that overseas flows rise precisely when the rupee is weak and US markets look strong, which amplifies pressure at the worst moment.

The rupee observation cuts both ways for you personally. The Financial Express analysis made the point precisely: a weaker rupee makes it more expensive to buy US stocks, not cheaper. Each dollar costs about 7% more than it did in January 2026. The rupee has weakened over long periods, which helps a patient investor, but nobody can predict its short-term direction. Buy for diversification, on a schedule, not because the chart looks good.

A sizing framework

Your situation	A defensible starting range for foreign equity	The reasoning
Early career, long horizon, no foreign liabilities	10% to 20% of equity	Enough to matter, small enough that a bad entry year is survivable
Mid career, children's education abroad likely	20% to 30%	You have a future dollar liability, so dollar assets match it
Near retirement, spending in rupees	0% to 10%	Currency volatility works against you when you are drawing down

Your situation	A defensible starting range for foreign equity	The reasoning
Any income from foreign clients or an employer paying in dollars	Higher than the ranges above	You already have dollar income; the portfolio should offset, not duplicate

Then apply the operational constraint: compliance cost scales with the number of holdings and the number of remittances, not with the amount. Below about Rs 5 lakh of total foreign exposure, the paperwork is a bigger cost than the fee difference between routes. Above Rs 25 lakh, the estate tax threshold in Part 9 starts to matter and the product choice becomes a tax decision.

Rebalancing abroad is expensive, so do it rarely

Rebalancing inside India costs a brokerage fee and, if you have held over a year, 12.5% on the gain with the Rs 1.25 lakh exemption available. Rebalancing a foreign holding costs a brokerage fee, a foreign exchange markup on the way out and the way back in, and 12.5% on the gain with no exemption at all. Do it annually at most, and prefer to rebalance with new money rather than by selling.

What happens at the edges of the account

Most guides stop at the first purchase. These are the situations that arrive later, and each of them has a correct answer that is cheaper to know in advance.

You exceed the USD 250,000 cap

You cannot. The bank will refuse the remittance, because the scheme does not permit it without prior approval from the Reserve Bank. The rule is also stricter than most people assume: once you have remitted the full USD 250,000 in a financial year you are not eligible for further remittances under the scheme even if your investments have been sold and the proceeds brought back to India. Bringing money home does not refill the cap.

What it means practically: if you have a very large sum to invest, the plan runs over multiple financial years, and the constraint is the cap, not your bank balance. At the reference rate of 95.25, USD 250,000 is about Rs 2.38 crore a year, which is a ceiling most retail investors will never approach. If you are approaching it, you are at the size where the estate tax question in Part 9 is live and you need professional advice rather than a book.

The bank asks you to explain a remittance

This is normal and it is not an accusation. Authorised dealers are required to satisfy themselves about the genuineness of the transaction and the source of funds. For capital account remittances the RBI expects the applicant to have maintained the bank account for a minimum period of one year before the remittance, and for newer customers the bank is expected to carry out due diligence on the account and to obtain a previous year's bank statement, or failing that a copy of the latest income tax assessment order or return.

The way to make this a five-minute conversation: keep one branch for all your capital account remittances, use the correct purpose code every time, and have the previous year's return and bank statement ready before you ask. What turns a routine check into a two-week problem is a remittance pattern that does not match your declared income, or a purpose code that changes between transfers for no stated reason.

You become a non-resident

If you move abroad and become a non-resident under the Income-tax Act, three things change at once. The Liberalised Remittance Scheme stops applying to you, because it is a facility for residents. Schedule FA stops applying, because it is for residents, and specifically not for non-residents or not-ordinarily-residents. And your Indian tax liability narrows to Indian-source income, which usually means you no longer pay Indian tax on gains from foreign shares.

The transition year is where people make errors, because residential status is determined for the whole year under tests that look at days of presence and at the preceding years. If you are leaving India in the middle of a financial year, get the residency determination right before you decide which schedule to fill. The saving from doing this properly is often several times the cost of the advice.

You die holding the account

Two legal systems apply, and this is the least discussed practical problem in the whole subject. In India, your holding is an asset of your estate and passes under your will or the succession law that applies to you, and a nomination on the brokerage account is a direction to the intermediary, not a substitute for a will. In the United States, US-situated stock above USD 60,000 requires a Form 706-NA estate tax return within nine months of death, as Part 9 sets out.

The practical steps that cost nothing and save your family months: name a nominee on the account and keep the nomination current, keep a written record of the broker, the account number and the custodian somewhere your family can find it, keep your will consistent with that record, and tell one other adult in the family that the account exists. A foreign account discovered only after a death, by people who do not know which broker holds it, is a genuinely difficult problem.

You want to move the holdings to another platform

Ask about this before you open the account, because the answer varies from easy to impractical. A transfer between two platforms that both route through the same foreign broker partner is usually an internal re-registration. A transfer from a direct US brokerage account to a GIFT City provider can require a physical or electronic transfer of assets between custodians, with paperwork on both sides. Selling and re-buying is always possible and always creates a taxable event, so do not treat a transfer as free.

You want to close the account and bring the money home

Sell, let the trade settle, and request a withdrawal to your Indian bank account. The dollars are converted back at a markup, which is the second half of the round trip described in Part 5, and the money arrives as a credit to your account. There is no restriction on repatriating your own sale proceeds; the constraints in this subject are on the way out, not the way back.

Two things to get right on the way out. Record the rupee value on the sale date, because that is what determines your capital gain, not the amount that eventually lands in your bank. And remember that a withdrawal does not restore your LRS headroom for the year.

Part 11. Three investors, end to end

The rules are easier to hold in your head when you watch them applied. These three cases use the rates in this book as at 1 November 2026 and the RBI reference rate of 95.25. They are illustrations, not advice.

Case A: the systematic investor

Priya is 27, salaried, in the 20% bracket after cess, and wants to invest Rs 50,000 a month. That is Rs 6 lakh a year, about USD 6,300 at today's rate, and it is comfortably inside both the USD 250,000 cap and the Rs 10 lakh TCS threshold.

Item	Amount	Note
Annual investment	Rs 6,00,000	Well below the Rs 10 lakh threshold, so no TCS at any point
Remittance frequency	Quarterly, Rs 1,50,000 each	Four fixed-fee hits instead of twelve, and enough averaging to blunt a bad entry day
Foreign exchange markup at 1%	Rs 6,000	The dominant cost. Worth negotiating, worth comparing
Brokerage at 0.1%	Rs 6,000	Same in total whether monthly or annual; only fixed fees change
Holdings	One broad US index ETF	One line in Table A3, one decision a year
Year-one tax work	Schedule FA Table A2 for the account and A3 for the holding, Schedule FSI and TR and Form 67 for any dividends, ITR-2	No capital gains if she does not sell
The 24-month discipline	No sales before 24 months	Every gain stays at 12.5% instead of her slab

Priya's single biggest risk is not the market. It is that in year three she sells a holding at 20 months to fund a deposit, and converts a 12.5% tax into a 20.8% one for no reason. The calendar in Part 13 exists to prevent that.

Case B: the lump sum and the March boundary

Arjun has Rs 18 lakh from a bonus and wants it invested in one go in January 2027. Remitted as a single transfer, the arithmetic is unpleasant.

Single remittance in January 2027	Amount
Remittance	Rs 18,00,000
LRS threshold for FY 2026-27	Rs 10,00,000
Amount above threshold	Rs 8,00,000
TCS at 20%	Rs 1,60,000 collected, refundable only after the FY 2026-27 return is processed in 2027

Now split it across the financial year boundary. In the last week of March 2027 he remits Rs 9 lakh, and in the first week of April 2027 he remits the other Rs 9 lakh.

Split across two financial years	Amount
Remittance in March 2027, financial year 2026-27	Rs 9,00,000, below the Rs 10 lakh threshold, TCS nil
Remittance in April 2027, financial year 2027-28	Rs 9,00,000, below the Rs 10 lakh threshold, TCS nil
TCS collected	Nil
Cash preserved	Rs 1,60,000 that would otherwise have been locked for over a year
Cost of the split	One extra remittance, two fixed fees, and roughly a week of market timing

Two conditions make this work. Arjun must not make any other LRS remittance in FY 2026-27, including a foreign holiday, because the threshold is aggregate and first-come-first-served. And both remittances must be invested promptly, because the 180-day rule applies to each.

Case C: the employee with vested stock

Meera works for a global capability centre and has USD 40,000 of vested restricted stock units in her employer, an American company, held in a US brokerage account. She has never filed Schedule FA. Her position is the most common and the most exposed in this entire book.

Issue	Her position	What to do
Schedule FA	Never filed, though she has held a foreign custodial account and foreign equity for three years	This is a non-disclosure exposure at Rs 10 lakh per year under the Black Money Act, mitigated for movable assets up to Rs 20 lakh from 1 October 2024, but not eliminated. Take it to a chartered accountant now and consider a revised or updated return
Dividend withholding	Her employer's plan may already handle the W-8BEN, or may not	Check the withholding rate on the last dividend. 25% means the treaty rate applies; 30% means the form is missing or expired
Estate tax	USD 40,000 is about Rs 38 lakh, below the USD 60,000 threshold, but RSU vesting will cross it	The next vest could take her past the line. Decide now whether to keep holding US-situs stock or to shift new exposure into an Indian feeder fund
Concentration	Her salary and her savings depend on the same company	Sell on vest and diversify. Holding employer stock is a double bet on one balance sheet
Cost basis	Each vest is a separate lot with its own acquisition date and rate	Build the lot table in Appendix A before the first sale, not after

Meera's case is the argument for reading Part 8 before Part 7. Her problem was never which ETF to buy. It was three years of an unfiled schedule.

Part 12. Fifteen mistakes, ranked by what they cost

#	Mistake	What it costs
1	Filing ITR-1 or ITR-4 while holding a foreign asset	Those forms have no Schedule FA. The disclosure is missing by construction, which is the pattern the department's data matching is built to find
2	Not filing Schedule FA at all	Up to Rs 10 lakh per year under the Black Money Act, with relief only for movable foreign assets up to Rs 20 lakh from 1 October 2024
3	Reporting Schedule FA on the financial year instead of the calendar year	Wrong peak and closing values in every table, and an inconsistent return
4	Claiming the Rs 1.25 lakh LTCG exemption on foreign shares	The exemption needs STT-paid Indian listed equity. Claiming it on a US stock understates your tax
5	Selling at 20 months to fund something else	The gain moves from 12.5% to your slab rate. At a 30% slab that is more than double the tax
6	Leaving dollars uninvested past 180 days	A foreign exchange compliance breach under the LRS master direction, not a tax matter you can settle later
7	Remitting Rs 15 lakh in one transfer in March	Rs 1 lakh of TCS on the excess that a two-year split would have avoided entirely
8	Ignoring the foreign exchange markup	On Rs 10 lakh a year, the difference between 0.5% and 3.5% is Rs 30,000 annually, compounding against you
9	Letting the W-8BEN expire	30% withheld instead of 25%, and a messier credit claim
10	Not filing Form 67	You lose the foreign tax credit on dividends, which is the entire relief the treaty gives you
11	Using the wrong purpose code on the remittance	A bank record that does not match the return, which is exactly the mismatch an automated check surfaces
12	Investing through a relative's account	Beneficial ownership disclosure problems in Schedule FA, and a benami risk that is far worse than the tax saved
13	No lot-level records	You cannot prove the holding period, so the 24-month benefit is unavailable when you need it
14	Buying a leveraged or derivative product marketed to Indian residents	Not a permitted use of LRS. You have no regulatory protection and no clean way to report it
15	Forgetting advance tax after a big sale	Interest under sections 234B and 234C, and the salaried 90% safe harbour does not survive a large December gain

Part 13. Your first twelve months, dated

A calendar is worth more than a checklist because the deadlines in this subject are absolute. Print this page.

When	What you do	Why it is that date
Now, November 2026	Decide the route in Part 2. Ask the nine questions in Part 5 of two platforms. Get one all-in rupee figure from each	Before you open anything, so you are comparing prices not brands
November 2026	Open the account. Sign the W-8BEN. Note its expiry three calendar years out	Before the first dividend, or the rate is 30%
November or December 2026	First remittance, with the investment purpose code. Buy within days. File the documents in your financial-year folder	The 180-day clock starts on the remittance date
15 December 2026	Third advance tax instalment, if you have gains or dividends in this financial year	75% of the year's liability is due by this date
January 2027	Review: is any position approaching the 24-month line, and would waiting move it to 12.5%	The single biggest legal lever in this book
February 2027	Plan the March remittance. Check total LRS remittances for FY 2026-27 against Rs 10 lakh, including holidays and gifts	The threshold is aggregate and first-come-first-served
March 2027	Final advance tax instalment by 15 March. If splitting a large investment, remit the first half before 31 March	Two financial years, two thresholds
April 2027	Second half of the split remittance, first week. New LRS cap and new Rs 10 lakh threshold	Clean boundary, no TCS
June 2027	Assemble the eight documents in Part 8.10. Build the Schedule FA data sheet in Appendix A	The broker's annual statement is usually out by now
July 2027	File the return. ITR-2 or ITR-3, Schedule FA on a calendar-year basis, Schedule FSI, Schedule TR, Form 67	Do not use ITR-1 or ITR-4
By 31 March 2028	Absolute outer limit for Form 67 for tax year 2026-27 under Rule 128(9), provided the return was filed in time	After this, you are arguing case law instead of following a rule

Twenty questions, answered briefly

Each answer points to the part of the book where the reasoning and the source sit.

Question	Short answer
Is it legal for a resident Indian to buy US stocks?	Yes. Under the Liberalised Remittance Scheme, up to USD 250,000 per financial year for permitted purposes including investment in foreign securities. Part 3.
How much can I send in total, across everything?	USD 250,000 per financial year, April to March, aggregated across every purpose including holidays and gifts. Part 3.
Do I pay 20% tax to invest abroad?	No. TCS of 20% applies above Rs 10 lakh of aggregate LRS remittances. It is advance tax, credited in Form 26AS and refunded or adjusted in your return. Part 4.
Can I avoid the 20% entirely?	Yes, legally: keep the aggregate remittance in a financial year at or below Rs 10 lakh, which often means splitting a large investment across the March and April boundary. Part 4 and Case B in Part 11.
How long before a foreign share is long-term?	24 months. There is no 12-month treatment, because that applies to securities listed on a recognised stock exchange in India. Part 8.1.
Do I get the Rs 1.25 lakh LTCG exemption?	No. That exemption requires securities transaction tax, which foreign shares do not pay. The entire long-term gain is taxed at 12.5%. Part 8.1.
What rate applies to a gain held under 24 months?	Your slab rate, plus surcharge where applicable and 4% cess. Part 8.1.
How are US dividends taxed?	25% is withheld in the US under the treaty, and the dividend is taxed at your slab in India with credit for the US tax through Form 67. Part 8.4 and 8.5.
Do I have to declare a foreign brokerage account in my return?	Yes, in Schedule FA, every year, even if you earned nothing. Part 8.6.
Which ITR form do I file?	ITR-2 or ITR-3. Never ITR-1 or ITR-4, because they do not contain Schedule FA. Part 8.6.
Is Schedule FA on the financial year or the calendar year?	The calendar year, 1 January to 31 December. This is the most common error in the schedule. Part 8.6.
What is the penalty for not declaring?	Up to Rs 10 lakh per year under the Black Money Act, with relief since 1 October 2024 for movable foreign assets up to Rs 20 lakh. Part 8.7.
Does the US tax my capital gains?	Not for a non-resident who is not engaged in a US trade or business. The US tax you will normally meet is the withholding on dividends. Part 9.3.
What is the USD 60,000 number about?	The US estate tax filing threshold for a nonresident who is not a citizen, applied to US-situated assets including US corporate stock. About Rs 57 lakh at today's rate. Part 9.1.
Is my money insured if the broker fails?	Up to USD 500,000 including USD 250,000 of cash under SIPC. It does not protect you against the share price falling. Part 5.
What is the biggest hidden cost?	The foreign exchange markup, typically 0.4% to 3.5% depending on platform and route. On Rs 10 lakh a year, the difference is up to Rs 30,000. Part 5.
Can I leave dollars in the account and buy later?	Not indefinitely. Unspent or unrealised foreign exchange must be repatriated or reinvested within 180 days. Part 3.

Question	Short answer
Should I use an Indian mutual fund instead?	It removes the LRS, TCS, Schedule FA and estate tax exposure at the cost of control and a fund expense ratio. Below about Rs 5 lakh of foreign exposure it is often the better trade. Part 2 and Part 7.
Do I have to pay advance tax on gains?	Yes, in four instalments, unless your TDS already covers 90% of your assessed tax. A large sale breaks that safe harbour. Part 8.8.
When is Form 67 due?	On or before the end of the relevant assessment year, under Rule 128(9) as amended from 1 April 2022, provided the return was filed in time. Part 8.5.

> If you take one page of this book to a chartered accountant, take this one. Every row is a question they will ask, and having the answer ready is the difference between one meeting and four.

Appendix A. Four worksheets to print

A1. LRS and TCS tracker, one per financial year

Date	Purpose code	Amount remitted (Rs)	Cumulative LRS (Rs)	TCS collected (Rs)	Rate used

The two numbers that matter are the cumulative column against Rs 10 lakh, and the TCS column added up for the taxes-paid section of your return.

A2. Schedule FA data sheet, calendar year

Table	Field	Your entry
A2	Country and code, custodian name, account number, date opened	
A2	Ownership type: legal owner, beneficial owner or beneficiary	
A2	Peak balance during the calendar year, in rupees at SBI TTBR on the peak date	
A2	Closing balance on 31 December, in rupees at SBI TTBR on that date	
A2	Gross amounts credited: dividend, interest, sale proceeds, other	
A3	One row per holding: entity name, address, country, acquisition date	
A3	Initial value of investment, peak value, closing value	
A3	Gross dividend, total gross credited, gross sale proceeds	
G	Any other foreign-source income not in A2 or A3	

A3. Form 67 checklist

- Foreign-source income offered to tax, by head and by country.
- Foreign tax deducted or paid, by country, with the rate and the treaty article relied on.
- The supporting certificate or statement: the broker's tax document, or your own signed statement with proof of deduction attached.
- The Indian tax computed on that same income, so you can see the credit is the lower of the two.
- The acknowledgement number of the filed Form 67, kept with the return acknowledgement.

A4. The annual one-page summary

Opening value in rupees, closing value in rupees, money remitted in, money withdrawn, realised gains split into short-term and long-term, dividends gross and withheld, and the number of holdings. If you can fill this page in ten minutes from your own records, you are audit-ready. If it takes a weekend, fix the record-keeping before it becomes a notice.

Appendix B. Glossary

Term	Meaning
A2 form	The declaration you sign at the bank for the purchase of foreign exchange under LRS, stating the purpose
Advance tax	Tax paid in four instalments during the year rather than in a lump sum at filing
Beneficial owner	The person who provided the money for an asset, even if someone else holds the legal title
Black Money Act	The Black Money (Undisclosed Foreign Income and Assets) and Imposition of Tax Act 2015, which carries the Rs 10 lakh non-disclosure penalty
Calendar year	1 January to 31 December, the reporting period for Schedule FA, unlike the financial year used elsewhere in the return
Foreign tax credit	Relief for tax paid abroad, claimed through Schedule FSI, Schedule TR and Form 67
Form 12BAA	The declaration that lets your employer set TCS against the tax deducted from your salary
Form 26AS	Your consolidated annual tax statement, where TCS collected by your bank appears in Part VI
Form 67	The statement of foreign income and foreign tax filed to claim foreign tax credit
Form 706-NA	The US estate tax return for a nonresident who is not a citizen, due above USD 60,000 of US-situated assets
GAP	Global Access Provider, the IFSCA-licensed entity in GIFT City that routes resident investors' orders to foreign exchanges
GIFT City	India's International Financial Services Centre in Gujarat, regulated by IFSCA
LRS	Liberalised Remittance Scheme, the RBI facility allowing USD 250,000 of remittance per financial year per resident individual
LTCG	Long-term capital gain, which for foreign shares requires more than 24 months of holding and is taxed at 12.5%
SIPC	Securities Investor Protection Corporation, which covers up to USD 500,000 including USD 250,000 of cash if a US broker fails
STCG	Short-term capital gain, taxed at your slab rate
TCS	Tax collected at source, advance tax collected by the bank on LRS remittances above the threshold
TTBR	Telegraphic transfer buying rate, the State Bank of India rate used to convert foreign currency values into rupees in the foreign asset schedules
W-8BEN	The US form certifying that you are a non-US person and claiming the treaty rate on dividends

Appendix C. Sources and dates

Every rule in this book is drawn from the following, all checked in the last week of October 2026 and on 1 November 2026. Where a rate or threshold is quoted, it is the one in force at that date.

- Reserve Bank of India, Master Direction on the Liberalised Remittance Scheme (FED Master Direction No. 7/2015-16), including the USD 2,50,000 limit, the PAN requirement, the 180-day repatriation requirement in paragraph 17, and the requirement of a designated branch and one year of account history for capital account remittances.
- Reserve Bank of India, Master Direction on Other Remittance Facilities (FED Master Direction No. 8/2015-16), updated to 1 October 2026, for Schedule III of the FEM (Current Account Transactions) Rules and the surrender period.
- Reserve Bank of India, LRS frequently asked questions, for the scope of permitted purposes and the rule that exhausting the cap ends further remittances for that year even if proceeds return.
- Income-tax Department, Tax Collection at Source page, for the Rs 10 lakh threshold and the 20% rate on LRS remittances for purposes other than education and medical treatment.
- Income-tax Department, Schedule FA page and the step-by-step guide on CRS and FATCA reporting, for the tables, the calendar-year basis, the TTBR conversion rule and the ITR forms that carry the schedule.
- Income-tax Department, Rule 128, for the Form 67 requirement and the deadline at sub-rule (9).
- Income-tax Department, Tax on long-term capital gains and Threshold limits under the Income-tax Act, for the 24-month holding period, the 12.5% rate without indexation, and the Rs 1.25 lakh exemption being limited to STT-paid listed equity.
- Income-tax Department, Withholding Tax Rates table as amended by the Finance Act 2025, for the 25% treaty rate on dividends to individual shareholders from the United States.
- The Income-tax Act 2025 (Act 30 of 2025), in force from 1 April 2026, for the statutory definitions of short-term and long-term capital assets and the section 202 rates for tax year 2026-27.
- Finance Bill 2026 memorandum, for the tax rates and surcharge applicable in tax year 2026-27.
- IFSCA, Regulatory Framework for Global Access in the IFSC, circular of 12 August 2025, for the Global Access Provider definition, the client eligibility rule tied to LRS, the net worth requirement, the exclusion of crypto and derivatives, and the routing of client funds through an IFSC bank account.
- IFSCA and Economic Times reporting of June 2026 on the licences granted to Zerodha, Groww, Angel One and Upstox.
- CNBC and Mint reporting of 28 and 29 October 2026 on Groww's US stocks launch, Zerodha's beta, and the popularity of individual names among early users.
- Mint, Going global: step-by-step guide to buying international stocks, 28 October 2026, for platform fee schedules, foreign exchange markups, SIPC coverage, and the 25% dividend withholding position.
- Financial Express analysis of RBI LRS data, 15 October 2026, for the FY 2025-26 and April to July 2026 investment outflows, and for the 2026 index comparison.
- Internal Revenue Service, Estate tax for nonresidents not citizens of the United States and the Form 706-NA instructions, for the USD 60,000 filing threshold, the US-situs treatment of US corporate stock, the nine-month filing period and the graduated rates.

- IRS, Convention between the United States and India, Article 10, for the 15% and 25% dividend withholding rates.
- The Income Tax Appellate Tribunal decisions holding that filing Form 67 is a directory requirement, cited as the position to fall back on rather than to plan around.

> This book explains rules as they stand on 1 November 2026. Rates, thresholds and platform fees change, sometimes without notice, and the tax treatment of your own situation depends on facts this book does not have. Confirm every number that matters to you against the primary source listed above, or with a chartered accountant who handles foreign assets.